

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIET CUBIAS,

Petitioner

VS.

MARC CHAMBERLAIN JR,

Respondent

) Case Number: FDI-26-802478

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHANGE OF CHILD
CUSTODY AND/OR VISITATION CHANGE OF CHILD CUSTODY, VISITATION (PARENTING
TIME), CHILD INTERVIEWS FOR BOTH CHILDREN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Juliet Cubias (Mother) and Respondent Marc Chamberlain, Jr., (Father).
There are two minor children subject to this proceeding: Madeline (DOB: 03/06/10) and Marc
(DOB: 08/22/12).
- 2) On March 5, 2026, Father filed a Request for Order seeking a modification of child custody and
visitation (i.e., parenting time) orders. Father seeks joint legal and physical custody. In addition,
Father requests the children attend school in Maine starting the 2026-2027 school year. Father
requests he be the “school parent” and Mother be the “summer and school break parent.” Father
indicates their daughter expressed an interest in attending school in Maine and requests a Tier II
interview of the minor children.
- 3) On May 19, 2026, Mother filed a Responsive Declaration in which she asks this Court to deny
Father’s requests.

1 4) On May 28, 2026, Father filed a “Declaration of Truancy,” which has been read and considered
2 by the Court.

3 5) On June 24, 2026, the parties participated in Family Court Services (FCS) Mediation and did not
4 reach any agreements.

5 6) On July 7, 2026, the parties appeared, and the Court granted Father’s request for a Tier II
6 interview of the minor children (school preference and possible move to Maine with Father) and
7 continued the matter to September 1, 2026. The Court has received information from the Family
8 Court Services Mediation team related to the issues posed in Father’s motion.

9 **B. Findings and Order**

10 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
11 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
12 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
13 child is the United States.

14 2) All relief sought in Father’s Request for Order filed on March 5, 2026 is DENIED.

15 3) The children shall continue attending school in California.

16 4) All existing orders remain in full force and effect as there is no sufficient basis to modify the
17 existing child custody and visitation orders.

18 5) The Court will prepare the Findings and Order After Hearing.
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